TERMS AND CONDITIONS

1. General terms and conditions
GFL LTD is represented in India herein after collectively referred to as "Gujrat Fluorochemical Limited" and individually as "COMPANY".
Bidders (equipment, services etc.) who quote (commercially and technically) for the requirements asked by GFL Group India are herein referred as "Supplier".
request of Supplier, COMPANY shall provide a list of its Group Companies entitled to carry out group offsetting.

2. Illegal interference with competition
Using appropriate organizational measures, the Supplier shall be obliged to ensure that no employee dealing with COMPANY commits any civil or criminal offences against competition within the meaning of applicable laws in India.

3. Anti-corruption and sustainability
The requirements for Sustainable Development define the expectations of COMPANY and its Group companies regarding sustainable conduct by business partners involved in adding value of our products.
The full text of the requirements can be found on www.GFL.com -(Please update it on website)under cooperation Sustainability which contains expectations of the COMPANY in regard to environmental protection, employee rights, safety at work and health protection for all business connections of the GFL Group, which the Supplier undertakes to read before bidding for the contract with the COMPANY.
Supplier shall make itself aware about the requirement of Sustainable Development program of the COMPANY immediately upon acceptance of the Purchase order of the COMPANY. Supplier shall provide confirmation to COMPANY about the acceptance of the said Sustainable Development Program upon acceptance of the Purchase Order. The Supplier is obliged to comply with the conditions of the COMPANY's "Facility regulations", which includes penalties in cases of theft, damage to property, traffic violations and non-compliance with safety and security, regulations as stipulated therein or any other incidents of similar nature thereto covered under non-compliances.

4. Conflict of interest
The Supplier warrants that at the date of entering a Contract it does not and is not likely to have a conflict of interest (direct or indirect or through a third-party Supplier) in the performance of its obligations under the Contract. If a conflict or risk of conflict of interest arises (without limitation, because of work undertaken for any person or otherwise) the Supplier will immediately give notice of the conflict of interest, or the risk of it, to the COMPANY in writing.
Failure of the Supplier to comply with the above conflict of interest obligation may, at the sole discretion of the COMPANY lead to the cancellation of the Purchase Order / contract and blacklisting the Supplier for future business dealings with the COMPANY.

5. Insurance of activities carried out in COMPANY premises
The Supplier must arrange and ensure the following and keep COMPANY indemnified from,
a. Workmen Insurance including sub-contractors, if any engaged by them.
b. Complete Project Insurance covering all risks/accident/injury including third party in case of Supply & Installation in Construction Projects
c. Insurance of plant & machinery brought on the site

The Supplier shall provide the Finance & Accounting department of COMPANY with a copy of each insurance policy and documents taken out by Supplier in pursuance of the contract immediately after taking the insurance coverage. In case of non-payment of premium by the Supplier then COMPANY shall take steps to keep the policy active and deduct the premium cost from the amount payable to the Supplier.
The necessary documents and evidence of insurance must be submitted by the Supplier to the COMPANY immediately upon the start of the works and should be kept valid throughout the Purchase order/contract period including the extensions thereof.

6. Services on factory or industrial premises (If Applicable)
In the event, services are performed by the Supplier within the premises of COMPANY, Supplier shall comply with the following obligations:
i) Services shall be performed by the contracting Supplier independently and on its own authority in accordance with COMPANY's technical and organizational specifications under the supervision and managerial authority of the responsible employee designated by the contracting Supplier. The decision on the choice of personnel shall be made by the contracting Supplier.
ii) On-site contact persons shall be designated by both contracting parties for all information to be exchanged. Regular coordination meetings should take place between the contracting parties' contact persons to discuss the content and performance of services and to exchange all information needed for the fulfillment of the contract.
iii) For each change of personnel and during the orientation period for new employees, the contracting Supplier should ensure that the contractually agreed performance meets agreed quality standards.

7. Inspection and Performance of Services & Operations Rendered
Unless determined otherwise by COMPANY, it shall be the place of performance. Partial deliveries shall be permissible only if expressly agreed in writing between COMPANY and the Supplier; deliveries ahead of schedule shall also be subject to written agreement with COMPANY.
COMPANY reserves the right to inspect the goods after the receipt of ordered goods at the specified location. If COMPANY ascertains deviations from an order or a bill of delivery, e.g. differences in quantity, quality shortcomings or damage caused by transportation, it may return the consignment or accept it without losing its legal rights..
The services supplied must satisfy the provisions of the agreement/Purchase order. They shall not be deemed to have satisfied the provisions of the agreement/Purchase order if they do not possess the properties which COMPANY was entitled to expect pursuant to the agreement.
Where no detailed description has been provided of the requirements of the services, they shall in any event be of good quality and satisfy, at the very least, the normal requirements of reliability, effectiveness and workmanship.

8. Indemnification
Supplier agrees that it shall save, indemnify and hold the COMPANY / Its Directors/ Officers/ employees/operators harmless against any and all claims, losses, damages, liabilities or expenses (including attorney's fees) whatsoever for physical injury or death of any person and for loss or damage to any property, occurring in connection with the performance of your obligations hereunder, any breach of the terms and conditions of this purchase order or agreement or anything else to which COMPANY may become liable due to any action taken or any failure to act on part of Supplier, or in violation of the terms hereof or the applicable laws or regulations.
The Supplier shall also indemnify the company for supply of any defective parts/goods, towards the cost of

goods/spare parts etc. including rework cost and other expenses which the COMPANY may incur/is likely incur on account of supply of wrong / defective parts/goods promptly.

9. Termination:

COMPANY reserves the right to cancel or terminate this Purchase order without assigning any reasons by giving 30 days' written notice to the Supplier.

COMPANY also reserves the right to terminate this Purchase order with immediate effect for cause without prior notice upon the happening of any of the following events:

(a) If Supplier defaults in the due performance or observance of any of the obligations, covenants, conditions, warranties or provisions contained herein including but not limited to failure to supply and / or commission the above said goods/services conforming to COMPANY's specifications, within the agreed delivery date.

(b) If any representation, warranty, information or statement made or deemed to be made by you, whether explicitly or not, proves to be untrue, incorrect or misleading in any material respect or if any event occurs as a result of which, if any of the aforesaid representations, warranties or statements were repeated immediately thereafter with reference to the facts subsisting at the time of such repetition, the same would be untrue, incorrect or misleading in any material respect.

(c) If the Supplier goes into dissolution or liquidation or any order is made or resolution, law or regulation passed or other action taken for Supplier's dissolution or liquidation or Supplier shall otherwise enter liquidation, insolvency resolution process or restructuring.

(d) If Supplier applies for or agrees to an arrangement with its creditors or any proceeding or arrangement by which a substantial part of Supplier's assets is submitted to the control of its creditors.

(e) If Supplier becomes or are declared by any Government Authority or any other competent authority to be insolvent or is unable or admit in writing its inability to pay its debts as they fall due or become subject to or apply for any suspension of payment, bankruptcy, insolvency or reorganization proceedings if such cessation in COMPANY'S opinion has a material adverse effect on it..

(f) If the consent of any Government Authority, required for the validity, enforceability or legality of the terms hereof ceases to be or is not for any reason in full force and effect or such performance becomes unlawful

(g) If extra-ordinary circumstances have occurred which in our sole opinion, make it improbable for Supplier to fulfill its obligations here under.

(h) In case of cancellation or termination of this Purchase order, all the payments made to Supplier pursuant to the terms hereof shall become immediately due and payable to COMPANY, along with liquidated and other damages, Any cancellation or termination of this Purchase order shall not constitute a waiver by COMPANY of any obligation that by its terms shall survive such cancellation or termination or a waiver of any claim which we may have for actual damages caused by reason of, or relieve you from liability for, any breach of the terms and conditions of this Purchase order prior to such termination or cancellation.

10. Force Majeure

Force majeure shall be deemed to be such circumstances arising after the contract has been executed as a result of unforeseeable, insurmountable and ineluctable by the Supplier events of an extraordinary nature occurring independent of the will of the Parties, such as a natural disaster or war. It means any event beyond the reasonable control of the Supplier but shall not include any industrial dispute involving any of its own employees or any reasonably foreseeable event to the extent that its effects could reasonably have been mitigated. The Contracting Supplier shall as soon as reasonably practicably notify the COMPANY in writing of the Force Majeure Event and may terminate the contract with immediate effect by giving written notice.

11. Protection of Rights

Supplier shall ensure that the goods delivered or services rendered to COMPANY do not, when taken together or as individual elements, infringe intellectual property rights (arising from patents or industrial designs) of any third party and that the goods or services are not burdened by any third party's rights in the Republic of India or abroad.
Supplier shall inform COMPANY of the use of all its own patents or industrial designs and the licensed use of third-party patents and industrial designs on the goods delivered or services rendered to COMPANY.
This shall not apply if Supplier produced the goods according to drawing, models or other comparable descriptions or information handed over by COMPANY and supplier do not know, or in connection with the products which Supplier develops, do not have to know, that it is infringing protected rights.
If so, requested by COMPANY, Supplier shall inform COMPANY of the use of unpublished or licensed protected rights and applications for protected rights in the production of the goods.

12. Pricing & Taxes:
Prices mentioned in the Purchase order/ Frame contract are firm till delivery and & no escalation whatsoever would be allowed. The total value of this Purchase order/ Frame contract (excluding taxes) is the maximum amount allowed to be billed under this Purchase order/ Frame contract, however it does not entitle the Supplier to claim the full amount without the performance of activities as per this Purchase order/ Frame contract. In case this contract is terminated for any reason then the amount of this Purchase order/ Frame contract shall stand closed on pro-rata basis.
Every Supplier / Service Provider, who are located in India and within the frame of Goods and Service Tax ("GST") has to register itself on Goods and Service Tax Network ("GSTN"), a website / platform provided by Government of India for initiating any transaction in relation to GST. Further that Vendor / Service Provider shall indemnify COMPANY for the loss caused in case the tax credit of GST is not passed on to the GFL Group Company/is for any reason whatsoever. In order to claim the credit/set off MVAT, GST and applicable CSS or any other tax or duty, the Supplier must provide appropriate invoice / document prescribed under the relevant Central / State Government and local authority legislation. Supplier should also submit other statutory documents as applicable from time to time to be furnished to the COMPANY's - Finance & Accounting Department [in the correct name of the transacting entity of GFL Group Company in India] for taking credit. COMPANY accepts only printed invoices for proper recording, monitoring and processing the payments. No handwritten invoices shall be accepted. Payments for handwritten invoices shall not be processed.
T.D.S (tax deduction at source) for "services" provided will be deducted as applicable according to the Indian Taxation Laws and Regulations. Accordingly, the T.D.S Certificate will be issued by COMPANY's Finance department.
COMPANY would deduct the amount with respect to taxes and other contributions from the payment due and payable to Supplier as applicable under any Central / State Government and local authority in the manner and time and at the rates applicable from time to time, unless Supplier submits a specific certificate for non-deduction or lower deduction of taxes/ contribution, under the applicable legislation from the relevant statutory authority in advance.
If Supplier has not submitted the proper invoice for availing any tax credit and the COMPANY is not able to avail the Tax credit, then COMPANY shall affect the payment to the Supplier after deducting the equivalent amount of the Tax credit so lost.
The tax exemption, concession if any. In addition to above, taxes, duties and levies, if any, which are prevailing on the date of signing of the Contract, but not considered by the Supplier in the Contract price, shall be borne and paid by the Supplier.
The Supplier shall bear and pay all taxes, duties, charges or levies which may be assessed, imposed or levied upon the Supply/ Works outside India or any receipt realized by him outside India in connection with and in the

execution of the Contract by any country or governmental agency thereof in which the goods/ Works/ services are carried out as per this Purchase Order & agreement.

13. Anti- Profiteering Clause

Any reduction in rate of tax on the supply of goods or services or the benefit of input tax credit or any other benefit accrued in consequence of provisions under Goods and Services Tax or any other applicable laws shall be passed on to the COMPANY by way of commensurate reduction in prices.

14. Discounts

Any discount given to the COMPANY before or at the time of supply of goods or services shall be distinctly mentioned in the invoices. Any discount given after the supply has been affected shall be granted through the issue of a Credit Note which shall have reference to the original invoice against which discount has been granted.

15. Internal Audit clause

The Supplier hereby grants the officials of Internal Audit department or any other officer of COMPANY and/or such other officer or agencies appointed by the Management of COMPANY such as statutory auditors, tax advisors, external consultants etc. (hereinafter referred as Review Agency), who are bound to professional confidentiality, the right to review and inspect all data and documents created between the contracting parties i.e. Supplier and COMPANY, as a result of the transactions arising out of the business relationship described in the Purchase Order. In the event of such a review by the Review Agency, the Supplier shall ensure participation and full co-operation by its employees from department(s) dealing with the transaction under review.

The Supplier shall also ensure that its sub-Suppliers or any other third Supplier related with such transaction under review including its agents, representatives, associates etc. shall participate and give their full co-operation for such review by Review Agency. Further the Supplier shall ensure that its sub-Suppliers, agents, representatives, associates etc. shall be bound by strict professional confidentiality obligation of such review at its own expense.

The Supplier hereby agrees and makes a commitment to COMPANY to include suitable clauses for an identical right of review and inspection of the transaction data and related documents in favor of COMPANY's Review Agency in its contracts with its agents, representatives, associates, sub-Suppliers etc. related to such transactions under review of the Review Agency.

In the event of mandatory inspections (e.g. tax audits) required under any applicable law or rules and regulations, the inspectors and/or statutory authorities are to be granted access to accounting documents the original documents or certified legible copies (hardcopies) must be provided in an adequate timeframe. Information of such inspections or audits shall be immediately given by the Supplier to Company.

16. Damages for Delay in Supply and Services

COMPANY and Supplier agree that if the parts/machinery or services to be supplied /performed hereunder is not performed or delivered/developed on or before agreed date and as per the agreed specifications and as a result, COMPANY suffers damages. COMPANY and Supplier have therefore agreed upon reasonable liquidated damages that may be imposed if the Supplier fails to meet the agreed obligation.

In the event Supplier fails to execute the order as per the provisions of the Purchase Order including contractual delivery time period indicated therein, COMPANY reserves the right to cancel the order in part or full without any compensation and

Purchase/execute such cancelled item from alternative sources. Any extra cost incurred by COMPANY on such purchases/services shall be recovered from Supplier with cost incurred by COMPANY either by way of deduction

from pending bills or future bills (from future work orders) by COMPANY or by means of separate remittance.

18. Liability
The liability of Supplier shall be limited to the contract value / order value.

19. Right to Impose Penalty/Debit Notes
The COMPANY shall impose appropriate penalty for any violation of terms and condition contained in any service or supply agreement to the Supplier, the debit note if received or acknowledged by any of the Supplier's representative, shall be final and conclusive evidence of debit.

20. Withholding of payment
The COMPANY shall be entitled to withhold the payment made to a Supplier, in case where if the Supplier has not fulfilled its obligation under the Contract or in case the dues payable to the COMPANY exceeds the claim of the Supplier. Supplier shall quote Purchase Order Number & Vendor Code in all its Delivery Challans / Original Invoices for fast & smooth payments.

21. Dispute Resolution
Any dispute or difference or claims of any kind between the COMPANY and the SUPPLIER arising out of or relating to this Purchase Order or Agreement, whether before or after the termination of this Purchase Order or the Agreement, shall be resolved in the first instance through amicable discussions between the representatives of Parties who shall meet together promptly, at the request of any Party, in an effort to mutually resolve such dispute, difference or claim by discussion between them.
Governing Law: The governing law of the contract shall be Indian law.

22. Business Partner Due Diligence Approval (BPDD)
Supplier hereby authorizes the COMPANY to conduct business partner due diligence as per Compliance policies of Company at any time. Supplier also authorizes the COMPANY to obtain and upon request shall assist COMPANY in obtaining, information about Supplier's financial condition from third parties, including without limitation banks, credit reporting agencies and other businesses that provide information.
Any terms and condition included in Supplier's invoice or any other documents issued by Supplier, shall be deemed to be solely for the convenience and no such term or conditions shall be binding on Company.

23. Use of Corrupt Practices, Unfair Means
a) Supplier commits itself to take measures necessary to prevent corrupt practices, unfair means and illegal activities during any stage of this agreement tenure or during any pre-agreement or post-agreement stage in order to secure the agreement or in furtherance to secure.
b) Supplier shall not use the services of any of the employees of COMPANY, directly or indirectly or enter any sort of monetary transaction with the employees of COMPANY. Supplier undertakes that it has not given, offered or promised to give directly or indirectly any bribes, commission, gift, consideration, reward, commission, or inducement to any of the employees of COMPANY or their agent or relatives for showing or agreeing to show favor or disfavor to any person in procuring this Agreement or for bearing to do or for having done or forborne to do any act in relation to the obtaining or execution of the aforesaid undertaking, by the Supplier or its partners, agent or servant or any one authorized by them or acting on its behalf. The Supplier undertakes that in the event of use of any such corrupt practices by the Supplier, Company shall be entitled to cancel the contract and recover from the Supplier, the amount of any loss arising from such cancellation. A decision of Company or its nominee to the effect that a breach of the undertaking had been committed shall be final and binding on the

Supplier.
c) Supplier further undertakes to comply with COMPANY'S CODE OF CONDUCT policy which is available at COMPANY'S website - Update Website

24. Confidentiality
The Supplier agrees to treat as business secrets all commercial and technical information of which it become aware by reason of their business relationships unless such information is common knowledge.
a) Drawings, models, jigs and templates, sample parts, or similar property may not be provided or otherwise made available to unauthorized third parties. The reproduction of such property is permissible only within the limits of business requirements and copyright law.
b) Supplier may only use their business relationship for advertising purposes with prior written consent.

25. Environment
In order to contribute to waste reduction and to increase the development and awareness of environmentally sound purchasing, wherever possible, Contractor will perform the Service by using durable products, reusable products and products (including those used in services) that contain the maximum level of post-consumer waste, post-industrial and/or recyclable content, without significantly affecting the intended use of the goods or services. It is recognized that a cost analysis may be required in order to ensure that such products are made available at competitive prices.

26. Contractor not to engage in certain activities
The Contractor shall provide professional, objective and impartial services without consideration for future work. The Contractor shall avoid undertaking other assignments that constitute an actual or apparent conflict of interest. The Contractor agrees that if, at any time during the Contract Term, it discovers either an actual or potential conflict of interest with respect to this Contract, it shall make a prompt disclosure in writing to the Chief Corporate Procurement (Notices), which shall include a description of the action(s) which the Contractor has taken or proposes to take to avoid, eliminate or neutralize the conflict. Upon receipt and review of Contractor's written disclosure as per the paragraph above, the Chief Corporate Procurement shall provide the Contractor with written instructions to manage and/or mitigate the conflict. The Purchaser reserves the right to terminate the Contract if such action is determined to be in the best interests of the Purchaser. Contractor shall require its Subcontractors to comply with the provisions

27. Child Labor
Forced or indentured child labor means all work or service: (a) exacted from any person under the age of eighteen (18) under the menace of any penalty for its non-performance and for which the worker does not offer himself voluntarily; or (b) performed by any person under the age of eighteen (18) pursuant to a contract the enforcement of which can be accomplished by process or penalties. Contractor certifies that no forced or indentured child labor was used to mine, produce, or manufacture, in whole or in part, any product or component, or perform any service furnished under this Contract.

28. Fair Labor Standards
Contractor shall pay all employees whose work relates to this Contract not less than the minimum wage prescribed by applicable law or regulation, without rebate, either directly or indirectly, and without making any deductions, either directly or indirectly, from the full wages earned, other than permissible deductions as set forth in applicable laws or regulations. Contractor shall not require, suffer, or permit any employee whose work relates to this Contract to work more than the maximum hours in any workweek permitted by applicable law or regulation

unless such employees are paid at least the overtime rate specified by applicable law or regulation.

29. Materiality

The management representatives of GFL Procurement Team, selected tier 1 suppliers, materiality analysis following GRI standards, vendor registration process, terms of contract, consultation documentation of key topics (stakeholder engagement forms - tier 1 suppliers) were taken into consideration and the same were found in line with the requirement.

30. Delivery Schedule

Time is the essence of this order and delivery of goods must be made as per delivery schedule, unless otherwise expressly agreed, failing which the order may cancelled by the purchasers without any liability on their par, necessary compensation to be paid by the seller for damage/loss caused to the purchasers.

31. Demurrage

Any demurrage, Wharf age of similar charges which purchasers have to undergo on account of Sellers failure to book the goods in accordance with the order or due to late delivery of the railway/ Road/Ship/Air Receipt and/or other documents of dispatch either by themselves or their Bankers shall be borne by sellers.

32. GUARANTEE

All goods and/or materials shall be supplied strictly in accordance with the specifications, drawings data sheets, other attachments and conditions stated in the order. The goods supplied shall be guaranteed through a 'certificate of guarantee' against bad design, poor raw materials and workmanship and any manufacturing defects for a period of 12 months from the date of commissioning or 18 months from date of supply whichever is earlier. All material furnace by the seller pursuant to this order are guaranteed to be the best quality of their respective kinds (unless otherwise authorized in writing by the Purchasers), to be free from faulty design, (to the extend such design is not furnished in writing by the Purchasers), workmanship and materials, and to be of sufficient size and capacity and of proper materials so as fulfill in all respect to all operation conditions, if any specified in this order. If any trouble or defect originating with the design, materials workmanship, operating characteristics or recommended specifications of such materials arises at any time prior to twelve months from the date of the first commercial operation of the Purchasers Plant of which the materials supplied under this order form a part there of, or eighteen months from the date of Shipment or receipt of material at factory site and put to use in operation whichever period shall first expire and the Seller is notified .thereof. Seller shall at its own expense and as promptly as possible make such alterations, repairs and
replacements as may be necessary to permit the materials to function in accordance with the specifications and to fulfill the foregoing guarantees.

33. LR Copy

Purchase Dept. (for orders issued from Dahej)

Gujarat Fluorochemicals Limited
12/A, GIDC Dahej Industrial Estate, Taluka: Vagra,
Distt. Bharuch 392130, Gujarat INDIA.

For orders issued from Baroda office LR copy to be sent at :
Gujarat Fluorochemicals Limited
ABS Towers, 3rd floor, Old Padra Road, Vadodara-390007, Gujarat, INDIA.

34. Dispatch Instruction /
For Dahej Plant

Invoicing & Dispatching address: -
Gujarat Fluorochemical Limited #Dahej Unit
12/A, GIDC Dahej Industrial Estate, Taluka: Vagra, Distt. Bharuch 392130, Gujarat |India

For Ranjit Nagar Plant

Gujarat Fluorochemicals Limited:
Survey # 16/3, 26, 27, Taluka Ghoghamba,
Ranjitnagar, Dist.: Panchmahal.
Pin code - 389 380, Gujarat, India
Telephone: (02678) 248107, 248152, Telefax: (02678) 248153

35.Values & Beliefs
GFL is governed by fundamental values & beliefs that are linked to our Vision & Mission statement - https://www.gfl.co.in/vision_mission.php